ROBERT K. HANNA, State Bar No.: 341970
JUNQIAO XIAO, State Bar No.: 341670
HYO JIN JULIA JUNG, State Bar No.: 316090
MICHAEL D. KAHN, State Bar No.: 236898
LAMONT FREEMAN, State Bar No.: 349862
Midland Credit Management, Inc.
350 CAMINO DE LA REINA, SUITE 100
SAN DIEGO, CA 92108
Telephone: (866) 300-8750
Facsimile: (858) 309-1588
CaliforniaLegal@mcmcg.com
California Debt Collection License #10644-99
Attorneys for Plaintiff

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
05/08/2024
Clerk of the Court
BY: AUSTIN LAM
Deputy Clerk

CGC-24-614470

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

CIVIC CENTER COURTHOUSE

MIDLAND CREDIT MANAGEMENT, INC. Plaintiff, vs. LISA OREILLY; and DOES 1 through 10, inclusive Defendant.	Case No. **COMPLAINT FOR:** **(1) Account Stated** PRAYER AMT: $1,548.69 LIMITED

MIDLAND CREDIT MANAGEMENT, INC., ("Plaintiff"), by counsel, sues LISA OREILLY, ("Defendant") under Account Stated and in support thereof states:

1. Plaintiff is authorized to do business in CALIFORNIA, with its principal place of business at 350 CAMINO DE LA REINA SUITE 100 SAN DIEGO CA 92108. Plaintiff owns portfolios of consumer receivables, which it attempts to collect. Plaintiff strives to treat its consumers, such as Defendant, with respect, compassion and integrity, hoping to provide mutually-beneficial opportunities for consumers to repay their debts and attain financial recovery.
2. Defendant is a resident of SAN FRANCISCO County, State of California and is subject to this Court's jurisdiction.
3. Plaintiff is unaware of the true names and capacities of Defendants sued by the fictitious names DOES 1 through 10. Plaintiff will ask leave of court to amend this complaint as and when the true names and capacities of Defendants named herein as DOES 1 through 10 have been ascertained.

Pursuant to California Civil Code ("CA CIVIL") §1788.58(a)(1)-(9), Plaintiff alleges:

4. Plaintiff is a debt buyer as defined by CA CIVIL §1788.50(a).

5. Defendant established an account (the "Account") with COMENITY BANK. The amount due is the result of transactions that occurred on the Account. Defendant was provided statements evidencing Defendant's use of the Account and the balance due. Defendant failed to make the required payments and subsequently defaulted on the Account on October 17, 2021. Thereafter, Plaintiff was assigned all rights, title, and interest in the Account.

6. Plaintiff is the sole owner of the debt. Attached as Exhibit A is a true and correct copy of the Bill of Sale from COMENITY BANK, to Plaintiff. The Account was purchased by Plaintiff on April 25, 2022.

7. The Account balance at the time of charge-off was $1,548.69. Plaintiff alleges that the date of default is October 17, 2021 and the date of the last payment was August 17, 2021.

8. The name of the charge-off creditor at the time of charge-off is COMENITY BANK. The address utilized by COMENITY BANK at the time of charge-off was ONE RIGHTER PARKWAY SUITE 100 WILMINGTON,DE 19803. At the time of charge off, the account number associated with the debt was XXXXXXXXXX-XX-0466.

9. The name of the debtor as it appeared in the records of COMENITY BANK is LISA OREILLY and the last known address as it appeared in the records of COMENITY BANK is 52375 AVENIDA BERMUDAS LA QUINTA CA 92253.

10. The name and address of all post charge-off purchasers of the debt are as follows:

Name	Address
MIDLAND CREDIT MANAGEMENT, INC.	350 CAMINO DE LA REINA SUITE 100 SAN DIEGO CA 92108

11. Plaintiff has complied with the provisions of CA CIVIL §1788.52. Plaintiff informed Defendant of the assignment of the Account.

12 Pursuant to CA CIVIL §1788.58(b), attached as Exhibit B is a true and correct copy of a monthly statement recording a purchase transaction, payment, or balance transfer while the Account was active as required by CA CIVIL §1788.52(b).

13. Attached as Exhibit C is a true and correct copy of a billing statement that was mailed to Defendant stating the balance due on the Account at or around the time of charge-off.

14. Plaintiff acquired all right, title, and interest to the Account. To the extent that Plaintiff acts in its capacity as successor-in-interest to the original creditor or its assigns, references herein to Plaintiff may include Plaintiff's predecessor-in-interest.

15. Plaintiff has attempted to contact Defendant through several means in an effort to resolve the Account, but has been unsuccessful. Defendant has not repaid this debt. Plaintiff works with consumers like Defendant to find mutually acceptable solutions, often offering discounts, hardship plans, and a variety of payment options. The majority of Plaintiff's consumers ignore calls or letters, and some simply refuse to repay their obligations. When this happens, Plaintiff must decide whether to pursue collection through legal channels, including litigation such as the present action against Defendant. Nonetheless, Plaintiff remains interested in discovering a mutually beneficial solution through voluntary payments, if possible, in this case.

16. Before commencement of this action, Plaintiff informed Defendant in writing, that it intended to file this action and that this action could result in a judgment against Defendant that would include court costs allowed by California Code of Civil Procedure § 1033(b)(2).

FIRST CAUSE OF ACTION

ACCOUNT STATED

17. Plaintiff realleges and incorporates by reference the foregoing paragraphs.

18. An account was stated in writing between Defendant and COMENITY BANK. Defendant opened and derived benefit from the Account. By using the Account, Defendant expressly or impliedly promised to repay COMENITY BANK. Within the last four years, Defendant became indebted on the Account.

19. On the Account, a balance of $1,548.69 was stated to be due to COMENITY BANK from Defendant. Plaintiff has no record of Defendant objecting to the balance due.

20. Before the commencement of this action, Plaintiff was assigned the Account and indebtedness. Plaintiff is now the sole owner of the Account.

21. Plaintiff has made a demand on Defendant for repayment of the Account, but Defendant has failed to pay the balance due.

22. The current balance presently due and owing is $1,548.69 which includes payments, set-offs, credits or allowances, if any, at or after charge-off.

WHEREFORE, Plaintiff requests judgment against Defendant for $1,548.69, costs of this action and post judgment interest at the statutory rate. Plaintiff waives any claim for pre- judgment interest and attorney's fees.

Dated: May 02, 2024

MIDLAND CREDIT MANAGEMENT, INC.

By: Lamont Freeman, Esq.

☐ ROBERT K. HANNA / ☐ JUNQIAO XIAO
☐ MICHAEL D. KAHN / ☐ HYO JIN JULIA JUNG
☒ LAMONT FREEMAN

EXHIBIT A

EXHIBIT A

BILL OF SALE

Comenity Bank ("Seller"), for value received and pursuant to the terms and conditions of that certain Credit Card Account Purchase Agreement dated October 25, 2019 between Seller and Midland Credit Management, Inc. ("Purchaser"), its successors and assigns ("Credit Card Account Purchase Agreement"), hereby assigns effective as of the Closing Date of April 25, 2022 all rights, title and interest of Seller in and to those certain Accounts described in the Credit Card Account Purchase Agreement and Schedule 1 (the "Asset Schedule") attached hereto and made part hereof for all purposes, to Purchaser.

The information contained in the Sale File (collectively, "Seller's Accounts Information") is true and complete as of the File Creation Date. Further, all of the information contained in Seller's Accounts Information (a) constitutes Seller's own business records regarding the Accounts and (b) accurately reflects in all material respects the information about the Accounts in Seller's possession. All of Seller's Accounts Information has been kept in the regular course of Seller's business, and was made or compiled at or near the time of the event and recorded by (or from information transmitted by) a person (i) with knowledge of the data entered into and maintained in Seller's business records, or (ii) who caused the data to be entered into and maintained in Seller's business records. All capitalized terms used, but not defined, in this Bill of Sale shall have the meanings assigned to such term in the Credit Card Account Purchase Agreement.

[redacted]

This Bill of Sale is executed without recourse except as stated in the Credit Card Account Purchase Agreement to which this is an Exhibit. No other representation of or warranty of title or enforceability is expressed or implied.

COMENITY BANK

By: Bruce Boren

Date: 5/23/22

Title: Chief Credit Officer

Midland Credit Management, Inc.

By: Danielle Nonfement

Date: 11/1/2022

Title VP of Business Development

SCHEDULE 1 TO BILL OF SALE
ASSET SCHEDULE

The individual Accounts transferred pursuant to the Credit Card Account Purchase Agreement and Bill of Sale are described in the electronic file named MCMG_HF_APRIL_2022_DPL_CB.TXT;MCMG_HF_APRIL_2022_LCS_CB.TXT and delivered by Comenity Bank to Midland Credit Management, Inc. on April 18, 2022 and summarized in the table immediately below (the "Sale File").

# of Charged-off Accounts	Aggregate Unpaid Balance	Percent	File Creation Date
[redacted]			04/15/2022

EXHIBIT B

CLOSING STATEMENT

AGREEMENT DATE:	October 25, 2019
SELLER:	COMENITY BANK
PURCHASER:	Midland Credit Management, Inc.
FILE NUMBER:	MCMG_HF_APRIL_2022_DPL_CB.TXT; MCMG_HF_APRIL_2022_LCS_CB.TXT
NUMBER OF ACCOUNTS:	[redacted]
TOTAL UNPAID BALANCE:	
PURCHASE PRICE PERCENTAGE:	
PURCHASE PRICE:	
FILE CREATION DATE:	April 15, 2022
CLOSING DATE:	April 25, 2022
WIRING INSTRUCTION	[redacted]

PORTFOLIO LEVEL AFFIDAVIT OF SALE BY ORIGINAL CREDITOR

STATE OF: UTAH
COUNTY OF: SALT LAKE

On [5/23/22], Bruce Bowman("Affiant") being duly sworn, deposes and says:

1. I am over 18 and I am the Chief Credit Officer of Comenity Bank ("Seller"). In that capacity and as part of my regular job duties, I have custody of certain business records of Seller, routinely review such business records, and am familiar with Seller's processes for the sale and assignment of accounts and business records, including those that are maintained in electronic form.

2. Seller owns certain accounts, and maintains and records information in the records as they relate to such accounts. I am authorized to make the statements and representations set forth in this affidavit on behalf of Seller. The statements set forth herein are true and correct to the best of my knowledge, information, and belief, based on either personal knowledge or review of the business records of the Seller. If called upon as a witness, I can testify competently to the facts contained herein.

3. My regular job duties include having knowledge of, and access to, business records relating to the Accounts (as defined below). These records are kept by Seller in the regular course of business, and it was in the regular course of business of Seller, for an employee or representative with personal knowledge of the act, event, condition, or opinion recorded to make memorandum or records or to transmit information thereof to be included in such memorandum or records; and that the records were made at or near the time of the act and/or event recorded or reasonably soon thereafter.

4. On or about 04/25/2022 Seller sold a pool of charged-off accounts (the "Accounts") by a Credit Card Account Purchase Agreement to Midland Credit Management, Inc. ("Buyer"). The original creditor at the time of charge-off was Comenity Bank.

5. Pursuant to the sale, Seller sold, transferred, assigned, conveyed, granted, bargained, set over and delivered to Buyer and its successors and assigns, good and marketable title to the Accounts and any unpaid balance free and clear of any encumbrance, equity, lien, pledge, charge, claim or security interest. I am not aware of any errors in the Accounts.

6. In connection with the sale of the Accounts, electronic and other records were transferred to or otherwise made available to the Buyer (the "Transferred Records"). The Transferred Records have been kept in the regular course of Seller's business, and were made or compiled at or near the time of the event and recorded by (or from information transmitted by) a person (i)with knowledge of the data entered into and maintained in Seller's business records, or (ii) who caused the data to be entered into and maintained in Seller's business records. To the extent that the Transferred Records include records that were prepared by a third party, they are records that were incorporated into the records of Seller as a business record and the accuracy of such records are relied upon by Seller in the regular course of business.

7. I certify under penalty of perjury that the foregoing is true and correct.

FURTHER AFFIANT SAYETH NOT.

Signed this 23rd day of May, 2022.

Bruce Bowman (AFFIANT NAME)

Comenity Bank

Subscribed and sworn to before me this 23rd day of May, 2022, by Bruce Bowman, an employee of Comenity Bank

Notary Public

JENNIFER PARDUE
Notary Public - State of Utah
Comm. No. 718844
My Commission Expires on
Jun 17, 2025

CERTIFICATE OF CONFORMITY

STATE OF UTAH

COUNTY OF SALT LAKE

The undersigned does hereby certify that she/he is an attorney at law duly admitted to practice in the State of Utah and is a resident of Utah, County of Salt Lake, Utah; that she/he is a person duly qualified to make this certificate of conformity; that the foregoing acknowledgment by Bruce Bowman named in the foregoing instrument taken before Jennifer Pardue a notary in the State of Utah duly conforms with the laws of the State of Utah, being the State in which it was taken; and when executed by Mr. Bowman in the manner indicated will qualify as a valid and effective sworn statement in such state.

06/30/2022
Date

Attorney at Law for the State of Utah

Field	Field Data
Account Number	00[redacted]0466
Seller Account ID	[redacted]7499
First Name	LISA
Last Name	OREILLY
SSN	XXX-XX-9842
Date of Birth	[redacted]
Address 1	52375 AVENIDA BERMUDAS
City	LA QUINTA
State	CA
Zip	92253
Home Phone	5127282638
Open Date	03/30/2017
Last Purchase Date	12/05/2019
Last Purchase Amount	$58.85
Last Payment Date	08/17/2021
Last Payment Amount	$64.11
Sale Amount	$1,548.69
Charge Off Date	03/31/2022
Charge off Balance	$1,548.69
Post Charge Off Interest	$0.00
Post Charge off Fee	$0.00
Post Charge off Payments	$0.00
Post Charge off Payments and Credits	$0.00
Post Charge off Credits	$0.00
Affinity	J. CREW

Account information provided by Comenity Bank pursuant to the Bill of Sale/Assignment of Accounts transferred on or about 04/25/2022 in connection with the sale of accounts from Comenity Bank to Midland Credit Management, Inc.

MCMG_HF_APRIL_2022_DPL_CB.TXT; MCMG_HF_APRIL_2022_LCS_CB.TXT

EXHIBIT B

Earn double points always

$1 spent with your J.Crew Credit Card = 2 points earned**

200 points earned = $5 reward**

**See additional important messages section for details

Summary of account activity

Account no.	****-****-****-0466
Previous balance	$1,240.93
Payments	-187.19
Other credits	0.00
Purchases	0.00
Other debits	0.00
Fees charged	0.00
Interest charged	24.31
New balance	**$1,078.05**
Past due amount	0.00
Credit limit	$1,180.00
Available credit	$0.00
Statement closing date	08/22/2021
Days in billing cycle	31

Payment information

New balance	$1,078.05
Minimum payment due	$57.01
Payment due date	09/17/2021

Late payment warning:
If we do not receive your minimum payment by 09/17/2021 you may have to pay up to a $40.00 late fee.

Minimum payment warning: If you make only the minimum payment for each period, you will pay more in interest and it will take you longer to pay off your balances. For example:

If you make no additional charges using this card and each month you pay:	You will pay off the balance shown on the statement in about:	And you will end up paying an estimated total of:
Only the minimum payment	3 years	$1540

For information regarding credit counseling services, call 1-800-284-1706.

Skip signing in to pay and use Comenity's EasyPay. It's safe and convenient. Use your smartphone camera or code reader to scan the QR code printed on your payment stub below to get started.

For questions regarding payments, billing information, or your J.Crew Credit Card account, please contact 888-428-8810; (TDD/TTY 800-695-1788) or visit ***comenity.net/jcrew***. Don't forget you may make a payment using personal check, bankers check, money order, or travelers check. We do no accept gift certificates or credit cards. Please see reverse for payment details. For product information, to place an order or connect with a personal shopper, contact our J.Crew Credit Card member priority line at 866-599-5222.

Your J.Crew Rewards

Login to your J.Crew Rewards account every time you shop to continue earning points and rewards** for purchases made using your J.Crew Credit Card. Not a J.Crew Rewards member? Sign up at jcrew.com/rewards today!	Earn rewards faster! Use your J.Crew Credit Card as a J.Crew Rewards member to earn double points always, so you earn a $5 reward for every $100 spent** (aka 200 points earned TWICE AS FAST!).	Viewing your points and rewards balance just got easier – simply head to the My Account section of your J.Crew Rewards account to view your activity.

Details of your transactions

TRANS DATE	TRANSACTION DESCRIPTION/LOCATION	AMOUNT
07/30/2021	PAYMENT - THANK YOU	-123.08
08/17/2021	PAYMENT - THANK YOU	-64.11

Fees

Total fees charged for this period	**$0.00**

Interest charged

Interest charge on purchases	**$24.31**
Total interest for this period	**$24.31**

NOTICE: See reverse side for important information.

Please tear at perforation above

J.CREW

Account number	****-****-****-0466
New balance	Minimum payment
$1,078.05	**$57.01**

99 3

☐ **Yes,** I have moved or updated my e-mail address - see reverse.

Mailed payments must reach us by 6pm ET on **09/17/2021.**

Amount enclosed: $

Please make check payable to:
COMENITY - J CREW

LISA OREILLY
52375 AVENIDA BERMUDAS
LA QUINTA CA 92253-3283

Please return this portion along with your payment to:
PO BOX 650973
DALLAS TX 75265-0973

04801015 00016628 [redacted]0466 000005701 000107805

Go Paperless!

To go paperless and receive your bill electronically, visit https://comenity.net/jcrew/paperless to sign up.

Keep this portion for your records.

What To Do If You Think You Find A Mistake On Your Statement

If you think there is an error on your statement, write to us at: Comenity Bank PO Box 182782, Columbus, Ohio 43218-2782.

In your letter, give us the following information:

- *Account information*: Your name and account number.
- *Dollar amount*: The dollar amount of the suspected error.
- *Description of Problem*: If you think there is an error on your bill, describe what you believe is wrong and why you believe it is a mistake.

You must contact us within 60 days after the error appeared on your statement.

You must notify us of any potential errors *in writing*. You may call us, but if you do we are not required to investigate any potential errors and you may have to pay the amount in question. While we investigate whether or not there has been an error, the following are true:

- We cannot try to collect the amount in question, or report you as delinquent on that amount.
- The charge in question may remain on your statement, and we may continue to charge you interest on that amount. But, if we determine that we made a mistake, you will not have to pay the amount in question or any interest or other fees related to that amount.
- While you do not have to pay the amount in question, you are responsible for the remainder of your balance.
- We can apply any unpaid amount against your credit limit.

Your Rights If You Are Dissatisfied With Your Credit Card Purchases

If you are dissatisfied with the goods or services that you have purchased with your credit card, and you have tried in good faith to correct the problem with the merchant, you may have the right not to pay the remaining amount due on the purchase.

To use this right, all of the following must be true:

1. The purchase must have been made in your home state or within 100 miles of your current mailing address, and the purchase price must have been more than $50. (Note: Neither of these is necessary if your purchase was based on an advertisement we mailed to you, or if we own the company that sold you the goods or services.)

2. You must have used your credit card for the purchase. Purchases made with cash advances from an ATM or with a check that accesses your credit card account do not qualify.

3. You must not yet have fully paid for the purchase.

If all of the criteria above are met and you are still dissatisfied with the purchase, contact *us in writing* at: Comenity Bank PO Box 182782, Columbus, Ohio 43218-2782.

While we investigate, the same rules apply to the disputed amount as discussed above. After we finish our investigation, we will tell you our decision. At that point, if we think you owe an amount and you do not pay we may report you as delinquent.

HOW TO AVOID PAYING INTEREST. Your due date is at least 25 days after the close of each billing cycle. We will not charge you interest on purchases if you pay your entire balance by the due date each month. We will begin to charge interest on new purchases made under a Low APR, Equal Payment or Budget Payment Credit Plan from the date of purchase.

BALANCE COMPUTATION METHOD. We calculate interest separately for each type of balance on your account using a "Daily Balance" to determine interest charges for each billing period. We figure the interest charge on your account by applying the periodic rate to the "daily balance" of your account for each day in the billing cycle. To get the "daily balance" we take the beginning balance of your account each day, add any new purchases and fees, and subtract any payments or credits (treating any net credit balance as a zero balance). This gives us the daily balance.

CREDIT REPORTING. We may report information about your account to credit bureaus. Late payments, missed payments, or other defaults on your account may be reflected in your credit report.

NOTICE OF CREDIT REPORT DISPUTES
If you believe the account information we reported to a consumer reporting agency is inaccurate, you may submit a direct dispute to Comenity Bank PO Box 182789, Columbus, Ohio 43218-2789. Your written dispute must provide sufficient information to identify the account and specify why the information is inaccurate:

- **Account Information:** Your name and account number
- **Contact Information:** Your address and telephone number
- **Disputed Information:** Identify the account information disputed and explain why you believe it is inaccurate
- **Supporting Documentation:** If available, provide a copy of the section of the credit report showing the account information you are disputing.

We will investigate the disputed information and report the results to you within 30 days of receipt of the information needed for our investigation. If we find that the account information we reported is inaccurate, we will promptly provide the necessary correction to each consumer reporting agency to which we reported the information.

PAYMENTS MARKED "PAID IN FULL". All written communications regarding disputed amounts that include any check or other payment instrument marked with "payment in full" or similar language, must be sent to: 1010 W. Mockingbird Lane, Suite 100, Dallas, TX 75247.
DO NOT USE THE ENCLOSED REMITTANCE ENVELOPE.
- We may accept payment sent to any other address without losing any of our rights.
No payment shall operate as an accord and satisfaction without prior written approval.

CUSTOMER SERVICE. Visit **comenity.net/jcrew** or call 1-888-428-8810 (TDD/TTY 1-800-695-1788).

TELEPHONE MONITORING. To provide you with high quality service, phone communication with us is monitored and/or recorded.

ADDITIONAL INFORMATION. The following designations, when appearing on the front of your statement, mean the following: V means variable rate (this rate may vary); WV INT PAY RQ means WAIVE INTEREST, PAYMENT REQUIRED; WV INT EQ PY means WAIVE INTEREST, EQUAL PAYMENT; WV INT LOW PMT means WAIVE INTEREST, LOW PAYMENT; DF INT PY RQ means DEFER INTEREST, PAYMENT REQUIRED; DEF INT EQ PY means DEFER INTEREST, EQUAL PAYMENT; DF INT LOW PMT means DEFER INTEREST, LOW PAYMENT and LOW APR EQ PAY means LOW APR, EQUAL PAYMENT. If you have a variable rate account, your periodic rates may vary. You may pay all of your Account balance at any time without penalty.

Send all inquiries to: CUSTOMER SERVICE, PO Box 182273, Columbus, Ohio 43218-2273.

Send all bankruptcy notices and related correspondence to Comenity Bank, Bankruptcy Department, PO Box 182125, Columbus, Ohio 43218-2125.

NOTICE ABOUT ELECTRONIC CHECK CONVERSION. When you provide a check as payment, you authorize us either to use information from your check to make a one-time electronic fund transfer from your account or to process the payment as a check transaction. When we use information from your check to make an electronic fund transfer, funds may be withdrawn from your account as soon as the same day we receive your payment, and you will not receive your check back from your financial institution.

PAYMENTS. Pay your Account by the payment due date by the time listed below. If we do not receive your payment in a correct format (outlined below) it may not be credited to your Account for up to five days, or may be rejected. Also, your payment must reach us by the payment cutoff time that applies to the payment method you select.
Correct Format. Correct format for different payment methods include:
Mailing or Overnight: Send a personal check, money order, traveler's check or cashier's check payable in U.S. dollars, to the name and address shown on this Statement in the payment stub area containing your balance and minimum payment amount. Be sure to include your payment stub, do not staple or clip your payment to the stub, include your account number on your check, use the envelope provided with your Statement, send one payment with one payment stub and do not send any correspondence with your payment. You should overnight a payment to 1010 W. Mockingbird Lane, Suite 100, Dallas, TX 75247 and the additional format requirements are the same as other mailed payments unless there is a dispute, in which case you follow the Payments Marked "Paid In Full" section above. Do not send cash or gift certificates. ***Pay By Phone:*** You can call us toll free at 1-888-428-8810 (TDD/TTY 1-800-695-1788) to make a payment by telephone, which may include a fee. ***Online:*** You can make a payment online at **comenity.net/jcrew**.
Payment Cutoff Times. Payment cutoff times/deadlines for us to receive payments are by the due date on this Statement in the payment stub area at the following times: ***Mailing and Overnight:*** By 5:00 pm Eastern Time (ET); ***Pay By Phone:*** By 6:00 pm (ET); ***Online:*** By 6:00 pm (ET).

New Information

Title (optional) _____ First Name _____ MI _____

Last Name _____ Soc. Sec. No. _____

Street Address _____

Apt. No. _____ RR _____ PO Box _____

City _____ State _____ Zip Code _____ Foreign Map Code _____

Home Phone _____ Work Phone _____

Email Address _____

2021 totals year to date	
Total fees charged in 2021	$145.00
Total interest charged in 2021	$204.19

Interest charge calculation

Your Annual Percentage Rate (APR) is the annual interest rate on your account. See BALANCE COMPUTATION METHOD on page 2 for more details. Minimum interest charge may exceed interest charge below, per your credit card agreement.

TYPE OF BALANCE	APR	BALANCE SUBJECT TO INTEREST RATE	INTEREST CHARGE
Purchases prior to 07/21/2019	24.9900% (v)	0.26	0.01
Purchases prior to 03/31/2021	24.9900% (v)	1,088.85	23.11
Purchases	24.9900% (v)	56.18	1.19

Additional important messages

Protecting your account from online fraud

If you're shopping online and are asked to verify your purchase by confirming the last four digits of your mobile phone number, this is a security step we've put in place on your behalf - it is safe to provide this information. Once you confirm it, we will use the mobile phone number on file with your J CREW credit card account to send you a verification code via text message.

Save on Interest Payment: You can check Account Center 24/7 for up-to-date balance and payment amounts including any new payments, transactions, fees and daily accruing interest.
You can avoid accruing additional daily interest on non-promotional purchases by paying the Save on Interest Payment amount by your billing statement due date.
The Save on Interest Payment includes:

- The balance of all non-promotional purchases and cash advances.
- The full remaining balance of deferred interest promotional credit plans expiring in the billing period.
- The required minimum payment amount for any other promotional credit plan or balance transfer.
- Interest charges calculated from the last billing date.

Affected by COVID-19? Comenity Bank Offers Support

As the bank that manages your credit card, our hearts go out to those affected by the coronavirus (COVID-19) pandemic.
The support we're extending to you. If you're experiencing financial hardship because of COVID-19, please call 1-888-428-8810 (TDD/TTY: 1-800-695-1788) to discuss how we may be able to help.
Account Center is available 24/7 for you to manage your J CREW account online. You can make payments and view your balance, transactions and statements online. Not yet registered? Visit comenity.net/jcrew, enter your J CREW credit card account number and ZIP code, then verify your identity.
We're looking out for you. We remain focused on the health and well-being of our customers and associates, and we'll continue to stay on top of what's happening during the pandemic so we can best support you.

IMPORTANT INFORMATION ABOUT LATE FEE CREDITS

We may occasionally provide a credit for the amount, part or all, of a late fee charged to your account. If we do, we will charge a fee of up to $40.00 for any subsequent late payment. In addition, we may reverse the credit and repost the charge to your account if you fail to make the minimum payment due on or before the due date in the next billing period.

(CONTINUED)

04801015 00016629 [redacted]0466 000005701 000107805

Additional important messages - continued

**Double points on every purchase. Must have valid email address and U.S. mailing address. Offer is exclusive to J. Crew Credit Card holders enrolled in the J.Crew Rewards program. This rewards program is provided by J.Crew and its terms may change at any time. For full Rewards Terms and Conditions, please see https://www.jcrew.com/loyalty_terms_conditions.jsp.
This number may not reflect all current earnings due to calculation delays. All earnings not reflected on this statement will be reflected on your next billing statement. Please view the Points Summary or Reward Details section at comenity.net/jcrew to view your complete point earnings balance information.
Credit card offers are subject to credit approval.

Find out how to shop safely online at onguardonline.gov

EXHIBIT C

Summary of account activity

Account no.	****-****-****-0466
Previous balance	$1,475.88
Payments	0.00
Other credits	0.00
Purchases	0.00
Other debits	0.00
Fees charged	41.00
Interest charged	31.81
New balance	**$1,548.69**
Past due amount	456.07
Credit limit	$1,180.00
Available credit	$0.00
Statement closing date	03/22/2022
Days in billing cycle	31

Payment information

New balance	$1,548.69
Minimum payment due	$534.08
Payment due date	04/17/2022

Late payment warning:
If we do not receive your minimum payment by 04/17/2022 you may have to pay up to a $41.00 late fee.

Minimum payment warning: If you make only the minimum payment for each period, you will pay more in interest and it will take you longer to pay off your balances. For example:

If you make no additional charges using this card and each month you pay:	You will pay off the balance shown on the statement in about:	And you will end up paying an estimated total of:
Only the minimum payment	4 years	$2349

For information regarding credit counseling services, call 1-800-284-1706.

Skip signing in to pay and use Comenity's EasyPay. It's safe and convenient. Use your smartphone camera or code reader to scan the QR code printed on your payment stub below to get started.

Details of your transactions

TRANS DATE	TRANSACTION DESCRIPTION/LOCATION	AMOUNT
Fees		
03/17/2022	LATE FEE	41.00
	Total fees charged for this period	**$41.00**
Interest charged		
	Interest charge on purchases	**$31.81**
	Total interest for this period	**$31.81**

2022 totals year to date	
Total fees charged in 2022	$123.00
Total interest charged in 2022	$87.99

Interest charge calculation

Your Annual Percentage Rate (APR) is the annual interest rate on your account. See BALANCE COMPUTATION METHOD on page 2 for more details. Minimum interest charge may exceed interest charge below, per your credit card agreement.

TYPE OF BALANCE	APR	BALANCE SUBJECT TO INTEREST RATE	INTEREST CHARGE
Purchases prior to 07/21/2019	24.9900% (v)	0.00	0.00
Purchases prior to 03/31/2021	24.9900% (v)	1,185.53	25.16
Purchases	24.9900% (v)	313.54	6.65

Additional important messages

Protecting your account from online fraud
If you're shopping online and are asked to verify your purchase by confirming the last four digits of your mobile phone number, this is a security step we've put in place on your behalf - it is safe to provide this

(CONTINUED)

NOTICE: See reverse side for important information.

Please tear at perforation above

J.CREW

Account number	****-****-****-0466
New balance	Minimum payment
$1,548.69	**$534.08**

99 4

☐ **Yes,** I have moved or updated my e-mail address - see reverse.

Mailed payments must reach us by 6pm ET on **04/17/2022.**

Amount enclosed: $

Please make check payable to:
COMENITY - J CREW

LISA OREILLY
52375 AVENIDA BERMUDAS
LA QUINTA CA 92253-3283

Please return this portion along with your payment to:
PO BOX 650973
DALLAS TX 75265-0973

04801015 00003005 [redacted]0466 000053408 000154869

Keep this portion for your records.

What To Do If You Think You Find A Mistake On Your Statement

If you think there is an error on your statement, write to us at: Comenity Bank PO Box 182782, Columbus, OH 43218-2782.

In your letter, give us the following information:

- *Account information:* Your name and account number.
- *Dollar amount:* The dollar amount of the suspected error.
- *Description of Problem:* If you think there is an error on your bill, describe what you believe is wrong and why you believe it is a mistake.

You must contact us within 60 days after the error appeared on your statement.

You must notify us of any potential errors *in writing*. You may call us, but if you do we are not required to investigate any potential errors and you may have to pay the amount in question. While we investigate whether or not there has been an error, the following are true:

- We cannot try to collect the amount in question, or report you as delinquent on that amount.
- The charge in question may remain on your statement, and we may continue to charge you interest on that amount. But, if we determine that we made a mistake, you will not have to pay the amount in question or any interest or other fees related to that amount.
- While you do not have to pay the amount in question, you are responsible for the remainder of your balance.
- We can apply any unpaid amount against your credit limit.

Your Rights If You Are Dissatisfied With Your Credit Card Purchases

If you are dissatisfied with the goods or services that you have purchased with your credit card, and you have tried in good faith to correct the problem with the merchant, you may have the right not to pay the remaining amount due on the purchase.

To use this right, all of the following must be true:

1. The purchase must have been made in your home state or within 100 miles of your current mailing address, and the purchase price must have been more than $50. (Note: Neither of these is necessary if your purchase was based on an advertisement we mailed to you, or if we own the company that sold you the goods or services.)

2. You must have used your credit card for the purchase. Purchases made with cash advances from an ATM or with a check that accesses your credit card account do not qualify.

3. You must not yet have fully paid for the purchase.

If all of the criteria above are met and you are still dissatisfied with the purchase, contact *us in writing* at: Comenity Bank PO Box 182782, Columbus, OH 43218-2782.

While we investigate, the same rules apply to the disputed amount as discussed above. After we finish our investigation, we will tell you our decision. At that point, if we think you owe an amount and you do not pay we may report you as delinquent.

HOW TO AVOID PAYING INTEREST. Your due date is at least 25 days after the close of each billing cycle. We will not charge you interest on purchases if you pay your entire balance by the due date each month. We will begin to charge interest on new purchases made under a Low APR, Equal Payment or Budget Payment Credit Plan from the date of purchase.

BALANCE COMPUTATION METHOD. We calculate interest separately for each type of balance on your account using a "Daily Balance" to determine interest charges for each billing period. We figure the interest charge on your account by applying the periodic rate to the "daily balance" of your account for each day in the billing cycle. To get the "daily balance" we take the beginning balance of your account each day, add any new purchases and fees, and subtract any payments or credits (treating any net credit balance as a zero balance). This gives us the daily balance.

CREDIT REPORTING. We may report information about your account to credit bureaus. Late payments, missed payments, or other defaults on your account may be reflected in your credit report.

NOTICE OF CREDIT REPORT DISPUTES
If you believe the account information we reported to a consumer reporting agency is inaccurate, you may submit a direct dispute to Comenity Bank PO Box 182789, Columbus, OH 43218-2789. Your written dispute must provide sufficient information to identify the account and specify why the information is inaccurate:

- **Account Information:** Your name and account number
- **Contact Information:** Your address and telephone number
- **Disputed Information:** Identify the account information disputed and explain why you believe it is inaccurate
- **Supporting Documentation:** If available, provide a copy of the section of the credit report showing the account information you are disputing.

We will investigate the disputed information and report the results to you within 30 days of receipt of the information needed for our investigation. If we find that the account information we reported is inaccurate, we will promptly provide the necessary correction to each consumer reporting agency to which we reported the information.

PAYMENTS MARKED "PAID IN FULL". All written communications regarding disputed amounts that include any check or other payment instrument marked with "payment in full" or similar language, must be sent to: 3000 Kellway Drive, Suite 120 Carrollton, TX 75006.
DO NOT USE THE ENCLOSED REMITTANCE ENVELOPE.
- We may accept payment sent to any other address without losing any of our rights.
No payment shall operate as an accord and satisfaction without prior written approval.

CUSTOMER SERVICE. Visit **comenity.net/jcrew** or call 1 888 428 8810 (TDD/TTY 1 800 695 1788).

TELEPHONE MONITORING. To provide you with high quality service, phone communication with us is monitored and/or recorded.

ADDITIONAL INFORMATION. The following designations, when appearing on the front of your statement, mean the following: V means variable rate (this rate may vary); WV INT PAY RQ means WAIVE INTEREST, PAYMENT REQUIRED; WV INT EQ PY means WAIVE INTEREST, EQUAL PAYMENT; WV INT LOW PMT means WAIVE INTEREST, LOW PAYMENT; DF INT PY RQ means DEFER INTEREST, PAYMENT REQUIRED; DEF INT EQ PY means DEFER INTEREST, EQUAL PAYMENT; DF INT LOW PMT means DEFER INTEREST, LOW PAYMENT and LOW APR EQ PAY means LOW APR, EQUAL PAYMENT. If you have a variable rate account, your periodic rates may vary. You may pay all of your Account balance at any time without penalty.

Send all inquiries to: CUSTOMER SERVICE, PO Box 182273, Columbus, OH 43218-2273.

Send all bankruptcy notices and related correspondence to Comenity Bank, Bankruptcy Department, PO Box 182125, Columbus, OH 43218-2125.

NOTICE ABOUT ELECTRONIC CHECK CONVERSION. When you provide a check as payment, you authorize us either to use information from your check to make a one time electronic fund transfer from your account or to process the payment as a check transaction. When we use information from your check to make an electronic fund transfer, funds may be withdrawn from your account as soon as the same day we receive your payment, and you will not receive your check back from your financial institution.

PAYMENTS. Pay your Account by the payment due date by the time listed below. If we do not receive your payment in a correct format (outlined below) it may not be credited to your Account for up to five days, or may be rejected. Also, your payment must reach us by the payment cutoff time that applies to the payment method you select.
Correct Format. Correct format for different payment methods include:
Mailing or Overnight: Send a personal check, money order, traveler's check or cashier's check payable in U.S. dollars, to the name and address shown on this Statement in the payment stub area containing your balance and minimum payment amount. Be sure to include your payment stub, do not staple or clip your payment to the stub, include your account number on your check, use the envelope provided with your Statement, send one payment with one payment stub and do not send any correspondence with your payment. You should overnight a payment to 3000 Kellway Drive, Suite 120 Carrollton, TX 75006 and the additional format requirements are the same as other mailed payments unless there is a dispute, in which case you follow the Payments Marked "Paid In Full" section above. Do not send cash or gift certificates. ***Pay By Phone:*** You can call us toll free at 1-888-428-8810 (TDD/TTY 1-800-695-1788) to make a payment by telephone, which may include a fee. ***Online:*** You can make a payment online at **comenity.net/jcrew**.
Payment Cutoff Times. Payment cutoff times/deadlines for us to receive payments are by the due date on this Statement in the payment stub area at the following times:***Mailing and Overnight:*** By 5:00 pm Eastern Time (ET); ***Pay By Phone:*** By 5:00 pm (ET); ***Online:*** By 5:00 pm (ET).

New Information

Title (optional) _____ First Name _____ MI _____

Last Name _____ Soc. Sec. No. _____

Street Address _____

Apt. No. _____ RR _____ PO Box _____

City _____ State _____ Zip Code _____ Foreign Map Code _____

Home Phone _____ Work Phone _____

Email Address _____

Additional important messages - continued

information. Once you confirm it, we will use the mobile phone number on file with your J CREW credit card account to send you a verification code via text message.

IMMEDIATE ATTENTION REQUIRED! Your Account is extremely past due and will be written off as a bad debt at the end of this month. To avoid this, you can pay the Minimum amount shown on this statement before the end of this month. If you are not able to pay the Minimum Payment amount, we will still be able to assist you and prevent your account from being written off. Call us at 1-855-617-8089 (TDD/TTY 1-800-695-1788) and we will find a suitable payment before the end of this month. If written off, the bad debt will be reported to the three major credit bureaus and our Recovery team will determine the appropriate steps, as permitted and available under applicable law, to protect our interests.

IMPORTANT INFORMATION ABOUT LATE FEE CREDITS
We may occasionally provide a credit for the amount, part or all, of a late fee charged to your account. If we do, we will charge a fee of up to $41.00 for any subsequent late payment. In addition, we may reverse the credit and repost the charge to your account if you fail to make the minimum payment due on or before the due date in the next billing period.

Consumers are entitled to one free credit report per year. To request yours call 1-877-322-8228 or visit annualcreditreport.com

04801015 00003006 [redacted]0466 000053408 000154869